

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, DECEMBER 19, 2025**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**JANE DOE vs. KENNY CHIROPRACTIC; ET AL.
Case No. CU24-00050**

Motion to Amend Complaint to Substitute Successors in Interest

TENTATIVE RULING

The motion to substitute Robert Rader, as a successor in interest to Plaintiff, who died on May 23, 2025, as the plaintiff in the action is granted.

“[T]he right of a personal representative [or a successor in interest] to be substituted for a deceased party is absolute if the cause of action survives death.” (*Pepper v. Superior Court* (1977) 76 Cal.App.3d 252, 260.) “On motion after the death of a person who commenced an action or proceeding, the court ***shall*** allow a pending action or proceeding that does not abate to be continued by the decedent’s personal representative or, if none, ***by the decedent’s successor in interest.***” (Code Civ. Proc. § 377.31, emphases added.)

**MR. JEFFERY MARSHALL vs. SHERRI GRIJALVA; ET AL.
Case No. CU**

Motion to Deem Matters Admitted

TENTATIVE RULING

The sole stated basis for the demurrer is for failure to state facts sufficient to constitute a cause of action, a basis for demurrer authorized by C.C.P. §430.10(e).

The sole cause of action attached to the form first amended complaint is for fraud, with boxes checked on the cause of action for intentional or negligent misrepresentation; concealment; and promise without intent to perform (all of the options available on that form cause of action).

In general, the elements of fraud must be pled with specificity. An exception to this specificity requirement is when the facts lie more in the knowledge of the defendant than the plaintiff. Tenet Healthsystem Desert, Inc. v. Blue Cross of California (2016) 245 Cal.App.4th 821, 838.

Although the form cause of action attached to the first amended complaint is labeled fraud, and the typical different types of fraud alleged are all checked, the allegations are consistent with a claim that someone forged Plaintiff's signature and initials on the contract, and that he never agreed to paying a per annum interest rate of 27% on the money he was lent to pay the difference between the contract price for the vehicle he purchased, and the \$8,500 down payment he made at time of receiving possession of the vehicle.

On demurrer for failure to state a cause of action, any cause of action properly alleged is sufficient to overrule the demurrer, even if it is not a cause of action the plaintiff identified in the pleading.

ANY valid cause of action overcomes demurrer: It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. [Quelimane Co., Inc. v. Stewart Title Guaranty Co. (1998) 19 C4th 26, 38-39, 77 CR2d 709, 715; New Livable Calif. v. Association of Bay Area Governments (2020) 59 CA5th 709, 714-715, 273 CR3d 688, 692-693; Adelman v. Associated Int'l Ins. Co. (2001) 90 CA4th 352, 359, 108 CR2d 788, 792; see Sheehan v. San Francisco 49ers, Ltd. (2009) 45 C4th 992, 998, 89 CR3d 594, 599—general demurrer may be upheld “only if the complaint fails to state a cause of action under any possible legal theory” (emphasis added)]

- P sued his insurance agent for “fraud” for unauthorized signing of P's name to papers limiting his insurance coverage. A demurrer for failure to plead fraud properly must be overruled because the complaint stated a malpractice action against the insurance agent: “Erroneous or confusing labels attached by the inept pleader are to be ignored if the complaint pleads facts which would entitle the plaintiff to relief.” [Saunders v. Cariss (1990) 224 CA3d 905, 908, 274 CR 186,

188]. 1 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2025) §7:41-7:42, pp. 22-23.

The elements of a forgery cause of action include intent to defraud, signing another person's name without authority, and an instrument capable of defrauding someone.

[I]n order to establish forgery three essential facts must be proven: "(1) Intent to defraud, (2) making a false instrument by signing another's name without authority or the name of a fictitious person, or knowingly uttering same, and (3) the instrument on its face be capable of defrauding someone who might act upon it as genuine or the person in whose name it is forged." More succinctly, forgery is a "writing which falsely purports to be the writing of another, . . ." (*Generes v. Justice Court* (1980) 106 Cal.App.3d 678, 682 [165 Cal.Rptr. 222]; see also *Century Bank v. St. Paul Fire & Marine Ins. Co.* (1971) 4 Cal.3d 319, 321-322 [93 Cal.Rptr. 569, 482 P.2d 193].) Wutzke v. Bill Reid Painting Serv. (1984) 151 Cal.App.3d 36, 41.

Plaintiff's first amended complaint alleges that he did not sign or authorize anyone else to sign on his behalf any contract inclusive of the 27% per annum interest term.

The court finds these allegations sufficient at the pleading stage, and thus overrules the demurrer by the Defendants to Plaintiff's first amended complaint.

Defendants have 30 days to file an answer to Plaintiff's first amended complaint.

Resetting of hearing on Plaintiff's earlier-filed motions

The court earlier announced its intention to reset for hearing five motions Plaintiff had earlier filed, that had been set for an earlier hearing date. These motions included (1) a motion to Compel Defendants to Attend, Participate and Appear for Any and All Depositions Per Subpoena to Attend Upon Set-Deposition Dates, Times and Locations Set by this Court; (2) a motion to Request a Court Appointed Stenographer so that Plaintiff Can Comply with his Deposition of Defendants as Part of Discovery on the Record; (3) a motion to Compel Defendants' Signature Samples and Printing Samples of Plaintiff's Name for Comparison of Plaintiff's Signature, and for Court to Appoint Forensic Handwriting Expert; (4) a motion to Confirm Plaintiff's Readiness to Meet and Confer to Discuss Settlement or Mediation; and (5) a motion for Emergency-In-Court Appearance to Enter Evidence re Forgery of Plaintiff's Signature.

Upon further review of the motions, the court has instead decided to deny all of them at this time.

CRC 3.1113(a) requires for almost all types of motions the filing and serving of a supporting memorandum of points and authorities, and acknowledges the court's discretion to find the lack of a proper memorandum of points and authorities as cause for denying the motion.

A party filing a motion, except for a motion listed in rule 3.1114, must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial and, in the case of a demurrer, as a waiver of all grounds not supported.

CRC 3.1113(b) identifies the contents required in a memorandum of points and authorities.

The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced.

None of the motions include a “concise” statement of the facts and the law required in a memorandum, and many lack citation to any authority whatsoever.

The court therefore denies all of these motions, without prejudice to refile any of these motions with a proper memorandum of points and authorities, if there are cases and/or statutes which support the filing of the motion.

The court also notes that after those motions had been filed, Plaintiff has been filing additional documents with the court, apparently intending that these filings be considered as motions. However, these filings were made also without proper memoranda of points and authorities, and thus none will be considered by the court. Any new motions filed by Plaintiff will need to be accompanied by a proper memorandum of points and authorities or they too will be summarily denied.

JOSEPH GULLO vs. AHP SERVICING, LLC; ET AL.
Case No. CU24-09570

Motion for Leave to File Second Amended Complaint; Motion to Continue all Hearings

TENTATIVE RULING

The Parties are to appear. At the hearing the Court’s tentative ruling is as follows.

Plaintiff JOSEPH GULLO moves for leave to file a second amended complaint. Plaintiff also moves to continue all presently set hearings in this matter.

Plaintiff’s motion for leave to file a second amended complaint is denied without prejudice due to the following issues.

Plaintiff’s motion for leave to file a second amended complaint fails to observe the requirements of California Rules of Court, Rule 3.1324, notably including the

requirement that a motion for leave to file an amended pleading must include a declaration specifying (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amendment were discovered, and (4) why said facts could not have been discovered earlier. The motion must also include a copy of the proposed amended pleading and information directly identifying each change the amendment would make.

Plaintiff's motion to continue all presently set hearings for one year is denied. The court notes that Plaintiff has been able to file his own motion to compel discovery, filed on November 12, 2025, and has filed an opposition to the demurrer by Defendant Amrock set for March 13, 2026.

The Parties are to appear, however, to discuss continuing Defendant Cit Bank's demurrer to March 13, 2026.

NORMAN ROSS DEYOUNG, JR. vs. ALBERTSON COMPANIES, INC.; ET AL.
Case No. CU25-08680

Special Motion to Strike

TENTATIVE RULING

Defendants' special motion to strike is granted.

"The law is that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, 941.) Plaintiff's causes of action are all based on a report made by Defendants' employee to law enforcement. (FAC, ¶¶ 9, 14, 17-18, 21, 23-25.) In fact, Plaintiff explicitly admitted that the causes of action "arise directly from Defendants' *unprotected, criminal conduct: the willful and malicious fabrication of a false police report*, as explicitly pleaded and supported by Exhibit A". (Decl. of Dolin, Exh. E, bold added.) Consequently, the burden shifted to Plaintiff to show a probability of prevailing on the merits. (*Varian Med. Sys., Inc. v. Delfino* (2005) 35 Cal.4th 180, 192.)

But, Plaintiff has not, and cannot, establish a reasonable probability to prevail on the merits. Defendants have an absolute privilege for any "statement urging law enforcement personnel to investigate another person's suspected violation of criminal law, to apprehend a suspected lawbreaker, or to report a crime to prosecutorial authorities". (*Hagberg v. Cal. Fed. Bank* (2004) 32 Cal.4th 350, 360, 364.) The privilege is **absolute**, even upon a showing of malice, barring all tort causes of action except a claim of malicious prosecution. (*Action Apartment Ass'n, Inc. v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1241-1242; *Hagberg*, 32 Cal.4th at 360; *Kimmel v. Goland* (1990) 51 Cal.3d 202, 209.) "[S]tatements made when a citizen contacts law enforcement personnel to report suspected criminal activity on the part of another person ... can be the basis for tort liability only if the plaintiff can establish the elements

of the tort of malicious prosecution.” (*Hagberg*, 32 Cal.4th at 355.) But, because there can be no claim of malicious prosecution without some “action” or “proceeding” that was first “commenced” and then “favorably terminated” (*Van Audenhove v. Perry* (2017) 11 Cal.App.5th 915, 919), Plaintiff is unable to assert a claim of malicious prosecution against Defendants.

GABRIELLA DRAGGES; ET AL. vs. STARBUCKS, LLC
Case No. FCS058279

Motion to Deem Matters Admitted

TENTATIVE RULING

The Parties are to appear.

Department 7 is inviting you to a scheduled ZoomGov meeting.
Join ZoomGov Meeting

<https://solano-courts-ca-gov.zoomgov.com/j/1611554664?pwd=T3U4QlBGWWNWaGlhXJTcGxIVHRXZz09>

Meeting ID: 161 155 4664

Passcode: 818575

One tap mobile

+16692545252,,1611554664#,,, *818575# US (San Jose)

+14154494000,,1611554664#,,, *818575# US (US Spanish Line)

Dial by your location

+1 669 254 5252 US (San Jose)

+1 415 449 4000 US (US Spanish Line)

+1 669 216 1590 US (San Jose)

+1 551 285 1373 US (New Jersey)

+1 646 828 7666 US (New York)

+1 646 964 1167 US (US Spanish Line)

+1 833 568 8864 US Toll-free